Reply to a data request: refuse, or charge a fee

Two replies for the cases where an organisation will not act on a request, or considers it excessive: what the law requires them to say, and the narrow reading of the European Data Protection Board.

FOR
Organisations in the EU, Iceland, Liechtenstein or Norway that receive a request under Articles 15 to 22 of the GDPR (the EU General Data Protection Regulation): the data protection officer, privacy team or small-business owner who answers. Notes for Italy and Germany where the rules differ.

NOT COVERED
Refusals under freedom-of-information laws; restrictions in public-sector and security laws beyond those named; the amount of a reasonable fee (no figure is set in the GDPR). The data protection laws of the states other than Bavaria were not read.

LAW AS OF
GDPR (Regulation (EU) 2016/679) as published on EUR-Lex, read 7 Nov 2026; EDPB Guidelines 01/2022 on the right of access, version 2.1 (adopted 28 March 2023, minor corrections 30 May 2024); Regulation (EEC, Euratom) 1182/71, Article 3; Italian Data Protection Code (Legislative Decree 196/2003) as on Normattiva (updated to the act published on 19 Feb 2026), read 4 to 8 Nov 2026; Garante complaint page (docweb 4535524), read 7 Nov 2026; BDSG as published on gesetze-im-internet.de, last amended by the Act of 12 May 2026, read 7 Nov 2026; Bavarian Data Protection Act (BayDSG) Articles 15 and 18, text in force from 1 Aug 2025 (gesetze-bayern.de), BDSG section 40(2) and the BfDI pages on the state authorities, read 8 Nov 2026

VERSION
1.1, 8 November 2026

When a refusal is possible

A request can be refused, in whole or in part, only on a ground the law gives. The main ones:

GROUND	WHERE
An exception in the article itself, for example the erasure exceptions, compelling legitimate grounds against an objection, the conditions of portability, or other people's rights for a copy	Article 17(3), 21(1), 20, 15(4)
A limit in national law	Article 23; Italy and Germany below
Where the purposes of the processing do not require the organisation to identify people (Article 11(1)) and it shows it cannot identify the person	Article 11, 12(2)
The request is manifestly unfounded or excessive	Article 12(5)

What the refusal must say

The organisation must inform the person *"without delay and at the latest within one month of receipt of the request of the reasons for not taking action and on the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy"* (Article 12(4)). For access, the European Data Protection Board (EDPB), the body of all EU data protection regulators, adds that *"The explanatory statement has to refer to the concrete circumstances in order to allow the data subjects to assess whether they want to take action against the refusal"* (EDPB Guidelines 01/2022, para. 174, p. 55). A partial refusal answers the rest of the request.

Manifestly unfounded or excessive requests

If a request is manifestly unfounded or excessive, the organisation may *"charge a reasonable fee taking into account the administrative costs"* or *"refuse to act on the request"*, and *"shall bear the burden of demonstrating"* the character of the request (Article 12(5)). For access requests the EDPB says:

POINT	WHERE
"These concepts have to be interpreted narrowly"	para. 175, p. 55
There is *"only very limited scope for relying on the "manifestly unfounded" alternative"*	para. 177, p. 55
A vast amount of time and effort *"cannot on its own render a request excessive"*	para. 188, p. 58
Not excessive just because no reason is given, the language is impolite, or the person intends to use the data for further claims	para. 189, p. 58
May be excessive: an offer to withdraw the request in return for a benefit, or a malicious request used to harass	para. 190, pp. 58 to 59
For excessive requests a fee *"will often be more appropriate"* than a refusal	para. 192, p. 59
Before charging, tell the person, so they can decide whether to withdraw	para. 194, p. 59

Letter A: refusal, in whole or in part

State the ground and the concrete facts. Delete what does not apply.

ORGANISATION NAME, ADDRESS,
DATA PROTECTION CONTACT OR DATA PROTECTION OFFICER

NAME OF THE PERSON, ADDRESS OR E-MAIL THEY USED

DATE

Subject: Your request: our decision

Your request of DATE OF THE REQUEST, received on DATE RECEIVED. Our reference: REFERENCE.

We have considered your request to WHAT WAS ASKED under Article NUMBER of the General Data Protection Regulation (GDPR).

Either: We are unable to act on your request. Or: We have acted on part of your request, as set out in ENCLOSURE, but not on the following part: PART REFUSED.

Our reasons are: THE LEGAL GROUND, FOR EXAMPLE ARTICLE 17(3)(E) GDPR, OR THE NATIONAL PROVISION, because THE CONCRETE FACTS THAT MAKE IT APPLY TO THIS REQUEST.

You have the right to lodge a complaint with a data protection authority, in particular in the Member State where you live, work or where the alleged infringement took place (Article 77 GDPR). In COUNTRY this is NAME, ADDRESS AND WEBSITE OF THE AUTHORITY. You also have the right to seek a judicial remedy before the courts (Article 79 GDPR).

If you have further information that may change our assessment, please send it to CONTACT.

Kind regards,

NAME AND ROLE OF THE PERSON SIGNING, for ORGANISATION NAME

Letter B: notice of a fee for an excessive request

Use only where you can show the request is excessive. Send it before charging. For the facts, write for example: it repeats in full your request of a given date, which we answered on a given date, and nothing has changed in our processing of your data since then.

ORGANISATION NAME, ADDRESS,
DATA PROTECTION CONTACT OR DATA PROTECTION OFFICER

NAME OF THE PERSON, ADDRESS OR E-MAIL THEY USED

DATE

Subject: Your request: notice of a fee

Your request of DATE OF THE REQUEST, received on DATE RECEIVED. Our reference: REFERENCE.

We consider your request excessive within the meaning of Article 12(5) of the General Data Protection Regulation (GDPR), because THE CONCRETE FACTS.

Under Article 12(5)(a) GDPR we may charge a reasonable fee based on our administrative costs. The fee would be AMOUNT, calculated as HOW IT IS CALCULATED.

Please tell us by DATE whether you wish to go ahead and pay the fee, or to withdraw or narrow your request. We will not charge anything without your reply.

You have the right to lodge a complaint with NAME OF THE DATA PROTECTION AUTHORITY (Article 77 GDPR) and to seek a judicial remedy (Article 79 GDPR).

Kind regards,

NAME AND ROLE OF THE PERSON SIGNING, for ORGANISATION NAME

ITALY

Italy

In the cases of letters (a), (b), (d), (e), (f) and (f-bis) of Article 2-undecies(1) of the Italian Data Protection Code (for example defence investigations or the exercise of a right in court, or a whistleblower's identity), the exercise of the rights *"può, in ogni caso, essere ritardato, limitato o escluso con comunicazione motivata e resa senza ritardo all'interessato"* (may be delayed, limited or excluded by a reasoned notice given to the person without delay), unless the notice would defeat the purpose of the limit. The person may then exercise the rights through the Garante, and *"Il titolare del trattamento informa l'interessato delle facoltà di cui al presente comma"* (the controller tells the person of these options) (Code, Article 2-undecies(3)). For letter (c), parliamentary committees of inquiry, the rules of Parliament or the law setting up the committee apply instead (Code, Article 2-undecies(2)).

If you rely on Article 2-undecies, name the letter of paragraph 1 that applies; for letters (a), (b), (d), (e), (f) and (f-bis), add: 'You may also exercise your rights through the Garante per la protezione dei dati personali, under Article 2-undecies(3) and Article 160 of the Code.'

The authority to name in the letter is the Garante per la protezione dei dati personali, Piazza Venezia 11, 00187 Rome (Garante, complaint model and instructions).

GERMANY

Germany

Under the Federal Data Protection Act (*Bundesdatenschutzgesetz*, BDSG), for access *"Die Gründe der Auskunftsverweigerung sind zu dokumentieren"* (the reasons for refusing must be recorded), and the refusal must be explained to the person unless giving the facts and legal grounds would defeat its purpose (section 34(2) BDSG). Where section 35(2) replaces erasure with restriction, the controller informs the person, unless that is impossible or disproportionate (section 35(2) BDSG).

The authority to name is usually the data protection authority of the federal state where the organisation is established; for a company with several establishments in Germany, the one of its main establishment (section 40(1) and (2) BDSG). According to the BfDI, the state authority supervises the state and municipal bodies of its state: *"Neben der Aufsicht über die Landes- und Kommunalbehörden wird auch der nicht-öffentliche Bereich grundsätzlich von den Landesdatenschutzbehörden betreut"* (besides supervising state and municipal authorities, the state data protection authorities in principle also cover the private sector) (BfDI: contact to the state authorities). Bavaria has two: the Bavarian State Office for Data Protection Supervision (*Landesamt für Datenschutzaufsicht*, in Ansbach) for companies and other private bodies, and the Bavarian State Commissioner for Data Protection (*Landesbeauftragter für den Datenschutz*) for Bavarian public bodies, municipalities included (Article 15(1) and Article 18(1) and (2) of the Bavarian Data Protection Act, BayDSG; BfDI page on Bavaria). The BfDI list of state authorities names them all.

How the organisation handles it: Handling data requests: procedure and register. Its replies: confirm receipt, confirm identity, extend the time limit, refuse or charge a fee, the answer.

The letters from the person: access, rectification, erasure, restriction, portability, objection, automated decisions.

Sources

GDPR, Regulation (EU) 2016/679 (EUR-Lex) • Used for: Articles 12, 15 to 22, 37, 38, 77 and 79, recitals; Fino's copy of each article is linked in the text

EDPB Guidelines 01/2022 on data subject rights: right of access, version 2.1 • Used for: How regulators read the right of access, time limits and identity checks (paragraphs and pages cited)

Regulation (EEC, Euratom) 1182/71 on periods, dates and time limits (EUR-Lex) • Used for: How a period in months is counted

Fino: Response timeline • Used for: Counting the one-month deadline

Italian Data Protection Code, Legislative Decree 196/2003 (Normattiva) • Used for: Articles 2-undecies, 2-terdecies, 140-bis to 143 and 152

Garante per la protezione dei dati personali: complaint model and instructions (docweb 4535524) • Used for: How to complain in Italy

Federal Data Protection Act, BDSG (gesetze-im-internet.de) • Used for: Sections 9, 19, 40 and 44 (regulators and courts) and the limits of the right in Germany

BfDI: list of the German state data protection authorities • Used for: Addresses of the regulators in Germany

Bavarian Data Protection Act (BayDSG), Articles 15 and 18 (gesetze-bayern.de) • Used for: The two Bavarian supervisory authorities: the State Commissioner for public bodies (Article 15(1)), the State Office in Ansbach for private bodies (Article 18(1) and (2))

BfDI: page on the Bavarian data protection authorities • Used for: Which Bavarian authority supervises whom, and the addresses